

TERMS AND CONDITIONS - SINGAPORE

Convera Singapore Pte Ltd and Convera Singapore Financial Pte Ltd

1. Definitions and Interpretation

1.1 Interpretation. Under these Terms and Conditions, the Services will be provided to the Client by:

- a) Convera Singapore Pte Ltd (company registration number: 198105018D) ("**Convera Singapore**"), where the Services involve the conversion of amounts from one currency to another currency without the need for any Prepayments and Option Contracts, which are subject to the terms set out in the Option Contracts Addendum; and
- b) Convera Singapore Financial Pte Ltd (company registration number: 200619104D) ("**Convera FS Singapore**"), where the Services involve the provision of Forward Contracts including the need for Prepayment.
- c) For ease of reference, the term "**Convera**" is used in these Terms and Conditions to refer to Convera Singapore and/or Convera FS Singapore as the case may be, depending on the relevant Service being provided.

1.2 Definitions. Capitalised terms used in these Terms and Conditions have the following meaning:

Additional Partial Prepayment (Margin Call/Risk Exposure Top-Up Payment) means the additional security payment required by Convera in connection with a Forward Contract. The amount of such payment will be determined solely by Convera and will be based on the actual adverse foreign currency fluctuation relative to the Client's original Forward Contract purchase price, or an adverse change in the Client's financial standing and/or credit worthiness.

Agreement means the Terms and Conditions and the Trading Application.

Authorised Person means individual(s) and/or entity(ies) authorised by the Client to provide Instructions to Convera on behalf of the Client. For the avoidance of doubt this may include an Authorised User.

Authorised User means individual(s) authorised by the Client to access the Online Payment System on behalf of the Client.

Business Activity means any business activity carried out by the Client including, without limitation: any operations or payments made to/from suppliers, customers, or agents; originating or shipping of goods; and any interactions with or exposure to entities, investments and/or securities.

Client means the entity agreeing to this Agreement.

Client Access Methods means the Client's unique password(s), PINs (if applicable) and/or user identification(s) (as the case may be) required to access the Online Payment System.

Confidential Client Information has the meaning given in clause 11.4.

Connected Parties include but are not limited to: affiliates, intermediary or beneficial owners, key controllers, trustees and beneficiaries of the Client.

Contract Funds means the type of currency and amount the Client agrees to purchase/sell.

Convera means, as described in clause 1.1, Convera Singapore and/or Convera FS Singapore depending on the type of Service being provided (i.e. depending on whether Prepayments are required of the Client).

Convera Group means the affiliates and subsidiaries of Convera that have the same ultimate corporate owner.

Convera Group Company means any Related Body Corporate of Convera and includes Convera shareholder and ultimate holding company and all subsidiaries of that ultimate parent entity.

Convera FS Singapore means Convera Singapore Financial Pte Ltd.

Convera Singapore means Convera Singapore Pte Ltd.

Delivery Window means the period of time prior to the Maturity Date (Delivery Date/Value Date) during which the Client may Draw Down on a Forward Contract. Settlement must be paid in full to Convera on or before close of the Delivery Window.